

Sun charger, electrical charger, USB charger, adaptor/transformator, rechargeable products

Produit : Electronic / Measuring devices

Legal manager : DLUBALA JULIEN

Updated at : 12/02/2026 11:38:12

Downloaded at : 27/03/2026 12:22:37

CANADA

Product's definition

Category

In which category the product is classified ?

Depending on their composition and functionality, chargers may be subject to one or more of several legal regimes. First, there are requirements applicable to all Consumer products in Canada (referred to here as "Consumer products"). There are also requirements applicable to all electrical equipment (referred to here as "electrical equipment"). There are requirements applicable to chargers which transmit radio waves (referred to here as "radio or interferencecausing equipment"). Chargers with certain types of batteries may be considered 'dangerous goods.' Finally, there are requirements applicable to chargers which qualify as "external power supplies" (referred to here as "Items subject to the Energy Efficiency Regulations").

"Battery charger" under the Energy Efficiency Regulations (Division 9, Subdivision E). Certain chargers, adaptors and transformers may be classified as "external power supplies"

"Consumer products" under the Canada Consumer Product Safety Act

Additionally, intelligent battery chargers are considered Category II equipment within the meaning of the Radiocommunication Regulations, and are thus subject to said Regulations. If the product in question is caught by the Radiocommunications Act, see 'Electronic/Measuring Devices - Radio Equipment' subcategory.

Product-specific information regarding the composition, nature etc. of each product could affect the product's classification and the applicable regulations. E.g. whether a battery has lithium-ion technology or not.

Batteries are considered "dangerous goods" under the Transportation of Dangerous Goods Act and Regulations. SEE 'Electronic/Measuring Devices - Batteries' for more information.

The following acts apply:

- New Brunswick : "Energy-using products" under the Energy Efficiency Act and "appliances" under provincial legislation in British Columbia, New Brunswick and Nova Scotia.
- Quebec : "Products" under the Act respecting energy efficiency and energy conservation standards for certain products.
- Nova Scotia : Rechargeable batteries contained inside certain chargers are considered "batteries" under the Solid Waste-Resource Management Regulations.

Regulations Cited in this Card :

- Transportation of Dangerous Goods Act, SC 1992, c 34 : <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>

- Canada Consumer Product Safety Act (S.C. 2010, c. 21) : <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>

- Energy Efficiency Act (S.C. 1992, c. 36) : <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>

- Energy Efficiency Regulations, 2016 (SOR/2016-311) : <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

- Natural Resources Canada's Guide to Canada's Energy Efficiency Regulations, available at : <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/6861>

C22.1:21, Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical Installations

Canadian Electrical Code, part II CAN/CSA-C22.2 NO. 0-10 (R2015)

Equipment is regulated by the provinces, which all require compliance with the Canadian Electrical Code. Part 1 of the Electrical Code sets out the requirements for electrical equipment, and Part II of the Electrical Code sets out particular standards for these products.

- Alberta :

Dangerous Goods Transportation

Handling Act and Electrical Code Regulation : <https://www.canlii.org/en/ab/laws/regu/alta-reg-209-2006/145932/alta-reg-209-2006.html>

- British Columbia :

Transport of Dangerous Goods Act

B.C. Electrical Code : http://www.bclaws.ca/civix/document/id/complete/statreg/12_100_2004#section20

Energy Efficiency Standards Regulation and Electrical Safety Regulation

- Manitoba :

Electrical Code Regulation : <https://www.canlii.org/en/mb/laws/regu/man-reg-76-2018/latest/man-reg-76-2018.html>

- New Brunswick :

Designated Materials Regulation and General Regulations under the Electrical Installation and Inspection Actk : <http://laws.gnb.ca/en/showpdf/cr/84-165.pdf>

Transportation of Dangerous Goods Act

- Newfoundland and Labrador :

Electrical Regulations (Public Safety Act) : <https://www.assembly.nl.ca/legislation/sr/regulations/rc969120.htm>

Dangerous Goods Transportation Act

- Nova Scotia :

Energy-efficient Appliances Act and Electrical Code Regulations : <https://novascotia.ca/just/regulations/regs/eiicode.htm>

Dangerous Goods Transportation Act

Solid Waste-Resource Management Regulations <https://novascotia.ca/just/regulations/rg2/2023/RG2-2023-08-11.pdf>

- Ontario:

Electricity Act, Product Safety Regulations : <https://www.ontario.ca/laws/regulation/070438>

Electrical Safety Code Regulations : <https://www.ontario.ca/laws/regulation/990164>

Reg. 509/18: Energy and Water Efficiency - Appliances and Products

Dangerous Goods Transportation Act

- Prince Edward Ireland

Electrical Inspection Act : <https://www.princeedwardisland.ca/sites/default/files/legislation/E-03-Electrical%20Inspection%20Act.pdf>

Electrical Inspection and Code Regulations : https://www.princeedwardisland.ca/sites/default/files/legislation/e03-1-electrical_inspection_act_electrical_inspection_and_code_regulations.pdf

Dangerous Goods (Transportation) Act

- Quebec :

Act respecting energy efficiency and energy conservation standards for certain products, CQLR c N-1.01 : <https://www.legisquebec.gouv.qc.ca/en/document/cs/N-1.01>

<https://www.rbq.gouv.qc.ca/en/areas-of-intervention/electricity/your-obligations-toward-the-rbq/approval-of-electrical-equipment.html> : Chapter 5 of the Construction Code (under the Building Act) adopts the Canadian Electric Code.

- Saskatchewan :

Electrical Inspection Act : <https://publications.saskatchewan.ca/#/products/499>

The Dangerous Goods Transportation Act

Goods Transportation Act

- North West Territories :

Electrical Protection Act : <https://www.justice.gov.nt.ca/en/files/legislation/electrical-protection/electrical-protection.a.pdf>

Electrical Protection Regulations : <https://www.justice.gov.nt.ca/en/files/legislation/electrical-protection/electrical-protection.r1.pdf>

Transportation of Dangerous Goods Act

- Nunavut :

The Electrical Act is in the process of being repealed and replaced by the Technical Standards & Safety Act (not yet in force)

Transportation of Dangerous Goods Act

- Yukon :

Electrical Protection Act : (<http://www.gov.yk.ca/legislation/acts/elpr.pdf>) and [Electrical Protection Regulation, http://www.gov.yk.ca/legislation/regs/oic1992_017.pdf](http://www.gov.yk.ca/legislation/regs/oic1992_017.pdf)

Dangerous Goods Transportation Act

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Energy Using products

Means products that are prescribed by the Energy Efficiency Regulations. This includes battery chargers. There are multiple definitions provided for "external power supply," depending on the product's properties.

Battery Chargers

battery charger means a device that charges the battery of a wheelchair, golf cart, low-speed vehicle or any other end-use product. It does not include any of the following:

(a) a device that charges the battery of a vehicle other than a wheelchair, golf cart or low-speed vehicle;

(b) a device that charges the battery of a medical device;

(c) a wireless battery charger, other than a wireless

battery charger that is inductive and designed for wet environments; or

(d) a backup battery charger. Battery Chargers are found under Subdivision E of Division IX of the Energy Efficiency Regulations.

Natural Resources Canada defines "battery charger" as "a device that charges the batteries of end-use products, including battery chargers that are embedded in end-use products. Battery chargers would not include UPS or back-up battery chargers".

Batteries

Depending on the product's composition, it may have a type of battery that is subject to the Transportation of Dangerous Goods Act (for example, a lithium-ion battery). This assessment must be done depending on the particular product's chemistry and properties. Certain labelling, certification, importation and recordkeeping requirements would apply. SEE 'Electronic/Masurement Equipment - Batteries' for more information.

Consumer Product

"consumer product" means a product, including its components, parts or accessories, that may reasonably be expected to be obtained by an individual to be used for non-commercial purposes, including for domestic, recreational and sports purposes, and includes its packaging.

Electrical Equipment

Electrical equipment is defined in the Canadian Electrical Code as "any apparatus, appliance, device, fitting, fixture, luminaire, machinery, material, or thing used in or for, or capable of being used in or for, the generation, transformation, transmission, distribution, supply, or utilization of electric power or energy and, without restricting the generality of the foregoing, includes any assemblage or combination of materials or things that is used, or is capable of being used or adapted, to serve or perform any particular purpose or function when connected to an electrical installation, notwithstanding that any of such materials or things may be mechanical, metallic, or non-electric in origin".

Radio Equipment

A Radio apparatus is defined as "a device or combination of devices intended for, or capable of being used for, radiocommu-

nication". Interference-causing equipment is defined as "any device, machinery or equipment, other than radio apparatus, that causes or is capable of causing interference to radiocommunication". Radio-sensitive equipment is defined as "any device, machinery or equipment, other than radio apparatus, the use or functioning of which is or can be adversely affected by radiocommunication emissions". Once an item meets one of the above definitions, it will be subject to the Radiocommunication Regulations, and will be further classified as either Category I or Category II equipment.

Additional Regulations Cited:

Natural Resources Canada's Guide to Canada's Energy Efficiency Regulations, available at <http://www.nrcan.gc.ca/energy/regulations-codes-standards/6861>
Transportation of Dangerous Goods Act, SC 1992, c 34, <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>
- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

The classification is established by the Radiocommunication Regulations, available at <http://laws-lois.justice.gc.ca/PDF/SOR-96-484.pdf>, makes reference to the:

- Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html

- Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html. Intelligent battery chargers are considered Category II equipment.

CSA Standard C22.1 - Canadian Electrical Code, part I, https://store.csagroup.org/ccrz_ProductDetails?viewState=DetailView&cartID=&sku=C22.1-18&gclid=EAlaQobChMiv5T8nf3x5glVhcDACH3hDQJIEAAYASAAEglXHfD_BwE

Canadian Electrical Code, part II CAN/CSA-C22.2 NO. 0-10 (R2015)

- Quebec:

"products" means any new product that consumes energy or has a measurable effect on energy consumption.

Comments

Comments

Chargers will only be subject to the requirements applicable to the category or categories of goods into which they fall.

For example, The Radiocommunications Act defines radiocommunications as "any transmission, emission or reception of signs, signals, writing, images, sounds or intelligence of any nature by means of electromagnetic waves of frequencies lower than 3 000 GHz propagated in space without artificial guide." While, chargers would not be "radio apparatus" - defined as "a device or combination of devices intended for, or capable of being used for, radiocommunication," they may be interference-causing equipment if they emit a radio-magnetic signal (eg, wireless chargers); this may be the case for some 'smart-chargers.' Therefore, this card covers the products in this subcategory as if some of them meet the definition of Radio Equipment, though more information is needed to make a definitive classification.

NOTE : however, that more information regarding the nature, composition, etc. of each specific product would be necessary in order to make a determination as to which category the product falls under and which regulatory regimes apply to the product. Please note that additional regulatory and/or permit requirements may also apply depending on the product's composition, nature, etc.

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

Electrical Products

Under the Canadian Electrical Code, caution and warning markings shall be in English and French except when a product is intended for use outside Canada. See section 6 of the Canadian Electrical Code, part II for further details.

The preferred French translations of the words WARNING and CAUTION are AVERTISSEMENT and ATTENTION.

Mandatory labelling on product

What are the mandatory labelling on the product ?

Energy-using products

Every energy-using product that is imported into Canada must be labelled with a verification mark that is issued by

(a) a certification body; or

(b) a province whose energy efficiency standard for the product is equivalent to or exceeds the energy efficiency standard prescribed for the product in these Regulations.

The verification mark must be readily visible on the surface of the energy-using product.

Certain exemptions apply depending on the category of product, for example for 'external power supplies'

Some regulated products must bear labels indicating their energy performance. Regulated products do not need to be labelled as a condition of importation. For more information on labelling requirements, please refer to the Introduction to the Regulations on NRCan's website

Electrical Equipment

Any electrical device that will be plugged into the power grid must bear a symbol indicating that it has been certified by a body approved by the Standards Council of Canada, as required by the Canadian Electrical Code (as put into force by the provincial legislation cited in the 'Definition' section).

Electrical devices must also bear any other applicable markings required by the Canadian Electrical Code (parts I and II), as put into force by provincial legislation (cited in 'Definition' section). Where any standard set out in the Electrical Code requires the information set out in section 6 of the Electrical Code (part II), the electrical equipment shall be marked in a permanent manner in a place where the details will be readily visible.

There are additional requirements for products subject to the Radiocommunications Act.

Radio or interference-causing equipment Radio apparatuses, interference-causing equipment, and radio-sensitive equipment must be labelled according to the requirements set out in the standards applicable to the item in question, which are provided in either the Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html, or the Category II Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

Provincial Labelling

In Nova Scotia, the brand name, image or logo must be clearly affixed in plain view on electronic products under the Solid Waste-Resource Management Regulations.

In British Columbia, the Northwest Territories, Nunavut, Ontario and Saskatchewan, in addition to being certified by an approved body, products that use electricity must bear evidence of said certification on the product itself.

Additional Regulations Cited in this Card:

A list of approved bodies is available at <https://www.scc.ca/en/accreditation/find-accredited-or-certified-body>.
NRCan's Guide to Canada's Energy Efficiency Regulations, <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/guide-canadas-energy-efficiency-regulations/6861>
NRCan, Introduction to the Energy Efficiency Regulations, <https://www.nrcan.gc.ca/energy/regulations-codes-standards/6859>

Provincial Electricity Acts incorporating the Canadian Electrical Code:

- British Columbia: Energy Efficiency Standards Regulation, http://www.bclaws.ca/civix/document/id/complete/sta-reg/14_2015
- New Brunswick: Energy Efficiency Act, <https://www.canlii.org/en/nb/laws/stat/rsnb-2011-c-149/lat-est/rsnb-2011-c-149.html>
- Nova Scotia: Energy-efficient Appliances Regulations and The Solid Waste-Resource Management Regulations (- <http://novascotia.ca/just/regulations/REGS/envsolid.htm>.)
- Ontario: Product Safety Regulations (under the Electricity Act), <https://www.ontario.ca/laws/regulation/070438>
- Québec: Regulation respecting the energy efficiency of electrical or hydrocarbon-fuelled appliances, <http://legisquebec.gouv.qc.ca/en/ShowDoc/cr/N-1.01.%20r.%201>
- Saskatchewan: Electrical Inspection Act, <http://www.qp.gov.sk.ca/documents/English/Statutes/Statutes/E6-3.pdf>
- Northwest Territories and Nunavut: Electrical Protection Act, <https://www.justice.gov.nt.ca/en/files/legislation/electrical-protection/electrical-protection.r1.pdf>

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Verification Mark - for certain energy-using products, the verification mark may be on the exterior of the product's package:

Electrical devices must comply with the requirements of the Canadian Electrical Code.

Also see 'Electronic/Measuring Devices - Radio Equipment' subcategory.

Additional Regulation Cited:

- Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>
- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Provincial Legislation:

- Nova Scotia: Energy-efficient Appliances Regulations

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Warnings for Consumer Products

It is prohibited to manufacture, import, advertise, or sell any consumer product that is a “danger to human health or safety”, that is subject to a recall, or that does not conform to any order made by the Minister of Health with regards to the safety of the product.

The Canada Consumer Product Safety Act defines a “danger to human health or safety” as an unreasonable hazard, even potential, posed by a product during or as a result of its normal or foreseeable use that may reasonably be expected to cause the death of an individual exposed to it or have an adverse effect on that individual’s health. You must therefore warn of any and all reasonably foreseeable risks. The location of the warnings is also relevant. It must be easily visible. The manufacturer has an obligation to do what is reasonable under the circumstances.

Additional requirements under the Canada Electrical Code may apply, as with the Radiocommunications Act depending on the product. For example, the prudent requirement to about the potential for electric shock.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Nil.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Nil.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Energy Efficiency Act

Failure to comply with the Act or Regulations (by not adhering to labelling and standards compliance) can lead to a maximum fine of \$200,000.

Radio or interference-causing equipment

Failure to comply with the requirements specific to Category I or Category II equipment is subject to a maximum fine of \$25,000.

Electrical equipment

The violation of the electrical code is sanctioned by provincial legislation.

- Alberta: Safety Codes Act
- British Columbia: Safety Standards Act
- Manitoba: Manitoba Hydro Act
- New Brunswick: Electrical Installation and Inspection Act
- Newfoundland and Labrador: Public Safety Act
- Nova Scotia: Electrical Installation and Inspection Act
- Ontario: Electricity Act
- PEI: Electrical Inspection Act
- Saskatchewan: Electrical Inspection Act
- North West Territories: Electrical Protection Act

- Nunavut: Electrical Protection Act
- Yukon: Electrical Protection Act

Comments

Comments

Nil.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

As mentioned above, in Nova Scotia and Prince Edward Island, the brand name, image or logo must be clearly affixed in plain view on electronic products.

Also as mentioned above, the Energy Efficiency Regulations, available at <http://laws-lois.justice.gc.ca/PDF/SOR-94-651.pdf> provides labelling requirements.

Chargers subject to provincial energy efficiency legislation could be subject to the following labelling requirements:

- British Columbia – those provided by the Energy Efficiency Standards Regulation, available at http://www.bclaws.ca/civix/document/id/complete/statreg/14_2015#section2.
- Ontario – those provided by the Energy Efficiency - Appliances and Product Regulation, available at <https://www.ontario.ca/laws/regulation/120404>, as detailed in the Green Energy Act, 2009, available at <https://www.ontario.ca/laws/statute/09g12>.

Any environmental statements that are voluntarily included should comply with the Competition Bureau's Environmental Claims: A Guide for Industry and Advertisers guide, available at: <http://www.competitionbureau.gc.ca/eic/site/cb-bc.nsf/eng/02701.html> to ensure the statement is not considered false or misleading.

Additionally, as mentioned above, if an item is treated with a product subject to the Pest Control Products Act, available at <http://laws-lois.justice.gc.ca/PDF/P-9.01.pdf>, the label must comply with the requirements of the Pest Control Products Regulations, available at: <http://laws-lois.justice.gc.ca/PDF/SOR-2006-124.pdf>.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Energy-Using Products
Regulated products must comply with minimum energy efficiency standards. Please see applicable standards as set out and

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Electrical Products

Electrical devices must comply with the requirements of the Canadian Electrical Code (parts I and II), as put into force by the provincial legislation cited in the 'Definitions' section of this card.

Items subject to the Energy Efficiency Regulations

These items must comply with the standards provided by the Energy Efficiency Regulations, Division 9 (Electronic Products). This regime has requirements regarding labelling, testing, physical requirements, reporting, importation, inspection and recordkeeping

In certain provinces, certain electronic items may be subject to requirements regarding physical and mechanical properties under provincial energy efficiency legislation, cited below.

Additional Regulations Cited:

Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

C22.1:21 - Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical Installations, <https://www.csagroup.org/store/product/CSA%20C22.1:21/>

CAN/CSA-C22.2 NO. 0-10 (R2015) - Canadian Electrical Code, part II

British Columbia

Energy Efficiency Standards Regulation, available at http://www.bclaws.ca/civix/document/id/complete/statreg/14_2015#section2

New Brunswick

Designated Materials Regulation, available at <https://www.canlii.org/en/nb/laws/regu/nb-reg-2008-54/latest/nb-reg-2008-54.html>

General Regulation, available at <https://www.canlii.org/en/nb/laws/regu/nb-reg-95-70/latest/nb-reg-95-70.html>

Energy Efficiency Act, available at <https://canlii.ca/t/544x4>

Nova Scotia

Energy-efficient Appliances Act, available at <http://nslegislature.ca/legc/statutes/energyef.htm>

Energy-efficient Appliances Regulations, available at <https://www.novascotia.ca/Just/regulations/regs/eeappliances.htm>

British Columbia

Energy Efficiency Standards Regulation, available at http://www.bclaws.ca/civix/document/id/complete/sta-reg/14_2015#section2.

Québec

N-1.01 - Act respecting energy efficiency and energy conservation standards for certain products, CQLR c N-1.01, <http://www.legisquebec.gouv.qc.ca/en/ShowDoc/cs/N-1.01>

Ontario

O. Reg. 509/18: ENERGY AND WATER EFFICIENCY - APPLIANCES AND PRODUCTS, <https://www.ontario.ca/laws/regulation/180509#BK15>

Electrical aspects

What are requirements regarding electrical aspects ?

Electrical equipment must comply with the requirements of the Canadian Electrical Code (parts I and II), as put into force by the provincial legislation cited in the 'Definitions' section of this card.

Depending on the type of product, there may be certain standards and requirements to comply with under the Energy Efficiency Regulations as well.

Additional Regulations Cited:

C22.1-18 - Canadian Electrical Code, Part I (24th edition), Safety Standard for Electrical Installations, <https://www.csagroup.org/store/product/CSA%20C22.1:21/>.

CAN/CSA-C22.2 NO. 0-10 (R2015) - Canadian Electrical Code, part II

Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Inflammability

Are there any specific requirements to ensure inflammability?

Electrical equipment

Electrical equipment must comply with the requirements of the Canadian Electrical Code (parts I and II), as put into force by the provincial legislation cited in the 'Definitions' section of this card.

Additional Regulation Cited:

C22.1:21, Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical : <https://www.csagroup.org/store/product/CSA%20C22.1:21/>

Hygiene

What are the rules regarding hygiene ?

Nil.

Radioactivity

What are the rules regarding radioactivity ?

Electrical equipment

Electrical equipment must comply with the requirements of the Canadian Electrical Code, as put into force by the provincial legislation cited in the 'Definitions' section of this card.

Additional Regulations Cited:

Category I Equipment Standards List, available at https://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01342.html, and the Category II Equipment Standards List, available at http://www.ic.gc.ca/eic/site/smt-gst.nsf/eng/h_sf01340.html

CSA Standard C22.2 No. 0-10 - Canadian Electrical Code

- Radiation Emitting Devices Act, R.S.C., 1985, c. R-1, <https://laws-lois.justice.gc.ca/eng/acts/R-1/index.html>
- Radiation Emitting Devices Regulations (C.R.C., c. 1370), https://laws-lois.justice.gc.ca/eng/regulations/C.R.C.,_c._1370/index.html

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

Nil.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

For the requirements applicable to packaging, please see above and the "labelling" section.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Good laboratory practices for Consumer Products

When applicable, the requirements of the Surface Coating Materials Regulations are to be tested in accordance with a method that conforms to "good laboratory practices", defined as practices that are in accordance with the principles set out in the Organisation for Economic Co-operation and Development document entitled OECD Principles of Good Laboratory Practice, Number 1 of the OECD Series on Principles of Good Laboratory Practice and Compliance Monitoring, ENV/MC/CHEM(98)17.

Suggested product testing conditions:

No legally mandated requirement exists. However, Health Canada suggests that testing be carried out in laboratories that have demonstrated competency in the relevant testing area, preferably through accreditation to ISO/IEC standard 17025:2017, General requirements for the competence of testing and calibration laboratories.

Electrical Equipment

Specific testing requirements may apply to energy-using products and products under the Radiocommunications Act. Under the Canadian Electrical Code, testing must be conducted in a laboratory recognized by the Standards Council of Canada. The Canadian Electrical Code is put into force by the provincial legislation cited in the 'Definitions' section of this card

Energy-using Products

Testing may be required to comply with certain standards under the Energy Efficiency Act. Provincial energy efficiency requirements apply:

- British Columbia: Energy Efficiency Standards Regulation
- New Brunswick: Energy Efficiency Act and Designated Materials Regulation
- Nova Scotia: Energy-efficient Appliances Regulations and The Solid Waste-Resource Management Regulations
- Québec: Regulation respecting the energy efficiency of electrical or hydrocarbon-fuelled appliances
- Ontario: Energy and Water Efficiency - Appliances and Products

Additional Regulations Cited:

A list of recognized bodies recognized by the Standards Council of Canada is available at: <https://www.scc.ca/en/accreditation/find-accredited-or-certified-body>

Surface Coating Materials Regulations (under the CCPSA), SOR/2016-193, <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-193/index.html>

Organisation for Economic Co-operation and Development - OECD Principles of Good Laboratory Practice, Number 1 of the OECD Series on Principles of Good Laboratory Practice and Compliance Monitoring, E: [http://www.oecd.org/officialdocuments/publicdisplaydocumentpdf/?cote=env/mc/chem\(98\)17&doclanguage=en](http://www.oecd.org/officialdocuments/publicdisplaydocumentpdf/?cote=env/mc/chem(98)17&doclanguage=en)

ISO/IEC 17025:2017 - General requirements for the competence of testing and calibration laboratories
<https://www.iso.org/standard/66912.html>

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

General violations of the CCPSA for Consumer Products

Canada Consumer Product Safety Act (or regulations) violations can result in a maximum fine of \$5,000,000 or a maximum imprisonment time of two years.

The party can defend itself by demonstrating that it took due diligence to avoid violating the Act. Conversely, the party will attract more liability if it violated the Act knowingly.

Violations of the Canadian Environmental Protection Act for Consumer Products

The violation of CEPA or any of the above-mentioned environmental regulations, by a corporation is subject to a maximum fine of \$6,000,000 on a first offence.

Energy Efficiency Act

Failure to comply with the Act or Regulations (by not adhering to labelling and standards compliance) can lead to a maximum fine of \$200,000.

There are also sanctions under Provincial Legislation (see "Labelling - Sanctions/Fines" in this card), and for products subject to the Radiocommunications Act.

In Manitoba : Manitoba, Right to Repair: A manufacturer who does not comply with the right to repair rules must, upon request from a consumer who purchased the manufacturer's branded electronic product,

(a) replace the electronic product at no cost; or

(b) refund the amount paid by the consumer to purchase the electronic product. (s. 211.3)

-The consumer protection amendment act (right to repair electronic products), Bill 216.

Additional Regulations Cited:

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>

Canadian Environmental Protection Act, 1999 (S.C. 1999, c. 33), <https://laws-lois.justice.gc.ca/eng/acts/c-15.31/>

Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Comments

Comments

Nil.

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Energy using products

As per the Energy Efficiency Act, energy-using products must be labelled with a verification mark from a certification body,

which is a body that is accredited by the Standards Council of Canada to operate a certification program in respect of the energy efficiency of the product.

Electrical Products

Certification is provincially regulated, and products which use electricity must be certified in each province by an approved body. However, to harmonize requirements throughout the country, each province has adopted a law requiring that electrical devices be certified by a body recognized by the Standards Council of Canada.

- Alberta: Electrical Code Regulation (under the Safety Codes Act), http://www.qp.alberta.ca/documents/Regs/2006_209.pdf
- British Columbia: Safety Standards Act, http://www.bclaws.ca/civix/document/id/complete/statreg/03039_01
- Manitoba: Manitoba Electrical Code, https://www.hydro.mb.ca/accounts_and_services/permits_and_inspections/pdfs/manitoba_electrical_code.pdf
- New Brunswick: Electrical Installation and Inspection Act, <http://laws.gnb.ca/en/showpdf/cs/2011-c.144.pdf>
- Newfoundland and Labrador: Public Safety Act, <https://www.assembly.nl.ca/legislation/sr/statutes/p41-01.htm> and Electrical Regulations, <https://www.assembly.nl.ca/legislation/sr/regulations/rc969120.htm>
- Nova Scotia: Electrical Installation and Inspection Act, <https://nslegislature.ca/sites/default/files/legc/statutes/electric.htm>
- Ontario: Product Safety Regulation (under the Electricity Act), <http://laws.gnb.ca/en/showpdf/cs/2011-c.144.pdf>
- PEI: Electrical Inspection Act, <https://www.princeedwardisland.ca/sites/default/files/legislation/E-03-Electrical%20Inspection%20Act.pdf>
- Saskatchewan: Electrical Inspection Act, <https://publications.saskatchewan.ca/#/products/499>
- Northwest Territories: Electrical Protection Act, <https://www.justice.gov.nt.ca/en/files/legislation/electrical-protection/electrical-protection.r1.pdf>
- Nunavut: Electrical Protection Act, <https://www.justice.gov.nt.ca/en/files/legislation/electrical-protection/electrical-protection.r1.pdf>

Additional Regulations Cited:

A list of bodies approved by the Standards Council of Canada is available at: <https://www.scc.ca/en/accreditation/find-accredited-or-certified-body>

Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>

- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Same provincial legislation as listed above.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Testing is to be conducted by a laboratory/body recognized by the Standards Council of Canada.

A list of bodies recognized by the Standards Council of Canada is available at: <https://www.scc.ca/en/accreditation/find-accredited-or-certified-body>

Comments

Comments

Nil.

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Recordkeeping Requirements for Consumer Products

A retailer must maintain records of the name and address of its suppliers, the location at which the products were sold, and the period during which they were sold. There is no requirement, however, to maintain records of every consumer transaction. Records must be maintained at the retailer's place of business in Canada for 6 years following the end of the year to which they relate, and must be provided to Health Canada upon request.

Further documentation requirements may apply to items subject to provincial energy efficiency legislation

Energy-using products

Every dealer who ships or imports energy-using products as described in subsection 4(1) shall provide the Minister with prescribed information respecting those products, including their energy efficiency, their shipment or their importation.

Every dealer shall keep, at the dealer's place of business or other prescribed place in Canada, documents and records sufficient to enable the Minister to verify the accuracy and completeness of the information provided.

However, the dealer may be exempt for certain products, which are incorporated into the finished product (including battery chargers) (section 7(1.1) of the Energy Efficiency Regulations).

Further documentation requirements may apply to items subject to provincial energy efficiency.

Electrical Equipment

Electrical equipment must comply with the requirements of the Canadian Electrical Code.

Additional Regulations Cited:

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

British Colombia

Energy Efficiency Standards Regulation, available at http://www.bclaws.ca/civix/document/id/complete/stra-reg/14_2015#section2

New Brunswick

Designated Materials Regulation, available at <https://www.canlii.org/en/nb/laws/regu/nb-reg-2008-54/latest/nb-reg-2008-54.html>

General Regulation, available at <https://www.canlii.org/en/nb/laws/regu/nb-reg-95-70/latest/nb-reg-95-70.html>

Energy Efficiency Act, available at <https://releve.canlii.org/en/nb/laws/stat/rsnb2011-c-149/latest/rsnb-2011-c-149.html>

Nova Scotia

Energy-efficient Appliances Act, available at <http://nslegislature.ca/legc/statutes/energyef.htm>

Energy-efficient Appliances Regulations, available at <https://www.novascotia.ca/Just/regulations/regs/eeappliances.htm>

Québec

N-1.01 - Act respecting energy efficiency and energy conservation standards for certain electrical or hydrocarbon-fuelled appliances, <http://www.legisquebec.gouv.qc.ca/en/ShowDoc/cs/N-1.01>

Ontario

O. Reg. 509/18: ENERGY AND WATER EFFICIENCY - APPLIANCES AND PRODUCTS, <https://www.ontario.ca/laws/regulation/180509#BK15>

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

Nil.

Comments

Comments

Nil.

Importation rules

General rules

What are the general rules in order to import the product ?

The Canada Border Services Agency (CBSA) assists Natural Resources Canada (NRCan) in the administration of the Energy Efficiency Act and the Energy Efficiency Regulations, 2016. The CBSA has published a memorandum outlining the procedures for the importation of energy-using products.

The Energy Efficiency Act and Energy Efficiency Regulations, 2016 prohibit the importation of certain energy-using products unless they meet specific requirements. Importers, who are dealers of these regulated products, must provide the CBSA with prescribed data elements.

An energy efficiency report must be filed with NRCan prior to first import, and necessary import information must be provided to the CBSA at the time of import

Exception for battery chargers:

The import reporting requirements under the Energy Efficiency Regulations, 2016 do not apply to battery chargers when they are incorporated into, or are components of any other products or machines.

Additional Regulation Cited:

CBSA Guidance Document - Importation of Energy-using Products Memorandum D19-6-3, <https://www.cbsa-asfc.gc.ca/publications/dm-md/d19/d19-6-3-eng.html>

Documents

What are the required documents ?

An energy efficiency report

Must be filed with NRCAN prior to first import. A dealer importing an energy-using product must provide the following information to NRCAN via the CBSA:

- (a) the name of the product using one of the names identified in paragraph 10 (below);
- (b) the model number of the product, including motors (please note that Unique Motor Identifiers for motors are no longer required);
- (c) the brand, if any, of the product;
- (d) the address of the dealer; and,
- (e) one of the following purposes for which the product is being imported:
 - i. sale or lease in Canada without modification; or,
 - ii. sale or lease in Canada after being modified to comply with the applicable energy efficiency standard; or,
 - iii. for incorporation into any other product that is to be exported from Canada.

Additional data elements are to be included in the Integrated Import Declaration (IID) submitted to the CBSA through the Single Window Initiative (SWI), service option 911.

Reports can be sent to NRCAN by email at NRCAN.es_se_oe-ee_report-rapport_ee.RNCAN@canada.ca.

The following information must be collected in accordance with CSA C381.2-17 or 10 C.F.R. Appendix Y and provided to the Minister in respect of a battery charger:

- (a) its product class;
- (b) its rated battery energy (E_{batt}), expressed in watthours;
- (c) its unit energy consumption, expressed in kilowatt-hours per year;
- (d) its power, expressed in watts, when it is in active mode, maintenance mode and standby mode, respectively; and
- (e) if an external power supply was used to test the battery charger, the power supply's model number and the name of its manufacturer

Additional Regulations Cited:

NRCAN Guidance on Energy Efficiency Reports - <https://www.nrcan.gc.ca/energy-efficiency/energy-efficiency-regulations/energy-efficiency-reports/6959>

CBSA Guidance Document - Importation of Energy-using Products Memorandum D19-6-3, <https://www.cbsa-asfc.gc.ca/publications/dm-md/d19/d19-6-3-eng.html>

Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>

- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html> - Section 7

Time period

In which time period may we obtain the right to import ?

Administration

What is the administration in charge of importations ? Name and address ?

The Canada Border Services Agency (CBSA) assists Natural Resources Canada (NRCan) in the administration of the Energy Efficiency Act and the Energy Efficiency Regulations, 2016

NRCan
Office of Energy Efficiency
Equipment Division
C.E.F. 930 Carling Avenue
Observatory, Bldg #3
Ottawa ON K1A 0E4
Email: nrcan.importation-importation.rncan@canada.ca
Facsimile: 613-947-5286
Website: NRCan's Energy Efficiency Regulations, 2016

Health Canada Consumer Product Safety Office
Via email (hc.cps-spc.sc@canada.ca)
Telephone at 1-866-662-0666

Additional Regulations Cited:

Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>
- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Comments

Comments

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

General Inspection of Consumer Products

Canada Border Services Agency may verify goods imported into Canada for origin, value for duty, or tariff classification for up to four years after importation.

Health Canada may, at any time, order that tests be conducted on the products, and that the results be provided to it. It may also, if it has reasonable grounds to suspect that the Canada Consumer Product Safety Act has been violated, conduct an inspection itself. In such a case, an inspector is permitted to enter private property and examine or test any good or document found thereon. The inspector may also seize certain goods.

Items subject to the Energy Efficiency Regulations

For the purpose of ensuring compliance with Energy Efficiency Act and the regulations, an inspector may, among other things, examine any energy-using product, or any other thing relevant to the administration of the Act, open and examine any package or receptacle found in the place that the inspector believes on reasonable grounds contains an energy-using product, examine any document or record that the inspector believes on reasonable grounds contains any information relevant to the administration of this Act and make copies thereof or extracts therefrom, and conduct any tests or take any measurements.

In carrying out an inspection of a place mentioned above, an inspector may take specific measures, and even seize and detain any energy-using product.

- In Quebec :

The Minister may authorize any person to act as an inspector to verify compliance with the Act respecting energy efficiency and energy conservation standards for certain products.

Act respecting energy efficiency and energy conservation standards for certain products, CQLR c N-1.01, <https://www.legisquebec.gouv.qc.ca/en/document/cs/N-1.01>

Additional Regulations Cited:

- Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
- Energy Efficiency Act (S.C. 1992, c. 36), <https://laws-lois.justice.gc.ca/eng/acts/e-6.4/>
- Energy Efficiency Regulations, 2016 (SOR/2016-311), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2016-311/index.html>

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

A retailer must not sell, offer for sale or otherwise distribute batteries to consumers in the Province unless the brand owner, or an agent of the brand owner, operates a battery stewardship program for the batteries.

Documents

What are the required documents ?

Nil.

Delay

What is the delay to obtain the right to commercialize ?

Nil.

Display in store

Is there some specific rules on the way to display the product in store ?

Display on internet

Is there some specific mentions to display the product on internet ?

Nil.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

Nil.

Comments

Comments

Nil.

Administration

What is the administration in charge of commercialization ? Name and address ?

Documents